



Australian Government
Department of Health

Ref No: MC20-004770

Rich McLean
rich@richmclean.com.au

Dear Mr McLean

Thank you for your correspondence of 8 March 2020 to the Minister for Health, the Hon Greg Hunt MP, regarding allegations of malpractice and misconduct against Dr John Whitaker of Millennium Medical centre. The Minister has asked me to reply.

I am sorry to hear of your negative experiences, and note your frustrations with the complaints process and the way your complaint has been handled.

Under the National Registration and Accreditation Scheme (the Scheme), the Medical Board of Australia (MBA) has responsibility for matters relating to the regulation of the medical profession in Australia. The MBA is supported in its role by the Australian Health Practitioner Regulation Agency (Ahpra). Both the MBA and Ahpra operate independently of government, and neither the Minister nor the Department can intervene in matters relating to individual practitioners.

I note that you have made a complaint to Ahpra and are unhappy with the outcome. It is important to note that Ahpra must ensure an appropriate balance between consideration of public safety and natural justice for the practitioner. Given your comments you may wish to make a formal complaint to Ahpra about how they have handled your notification. This process provides an avenue for Ahpra to get direct feedback from the public about their current processes and provides an opportunity for them to improve their customer service delivery. More information about the complaints process is available on Ahpra's website at www.ahpra.gov.au/About-AHPRA/Complaints.aspx.

It is not clear from your correspondence whether you have formally raised your concerns with the National Health Practitioner Ombudsman and Privacy Commissioner (NHPOPC). The NHPOPC is an independent authority which provides ombudsman, privacy and freedom of information oversight of the Scheme including Ahpra and the MBA. While the NHPOPC is unable to intervene in decisions relating to individual practitioners and cannot overturn decisions of agencies, the NHPOPC works with Ahpra to improve its service delivery and complaints handling processes. Information about the NHPOPC complaints process is available on its website at www.nhpopc.gov.au/make-a-complaint.

Noting the number of complaints organisations that you have listed as having contacted to raise these matters, you may like to consider seeking independent legal advice regarding alternative options to address your concerns.



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